

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #09	CCRB Case #: 201800674	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/06/2017 12:25 PM	Location of Incident: 330 Jay Street, 71st Precinct S/H	18 Mo. SOL 6/6/2019	Precinct: 71		
Date/Time CV Reported Thu, 01/25/2018 10:58 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 01/25/2018 10:58 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Lopez	27415	930590	071 PCT
2. POM David Hansen	08438	952827	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Lopez	Abuse: At 330 Jay Street in Brooklyn, Police Officer Luis Lopez did not obtain medical treatment for § 87(2)(b)	A . Exonerated
B . POM David Hansen	Abuse: At 330 Jay Street in Brooklyn, Police Officer David Hansen did not obtain medical treatment for § 87(2)(b)	B . Exonerated
C . POM Luis Lopez	Abuse: At the 71st Precinct Stationhouse in Brooklyn, Police Officer Luis Lopez did not obtain medical treatment for § 87(2)(b)	C . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On January 25, 2018, § 87(2)(b) filed this complaint in-person with the CCRB.

On December 6, 2017, at approximately 12:25 p.m., § 87(2)(b) was arrested by PO Luis Lopez and PO David Hansen, both of the 71st Precinct, at the Kings County Family Courthouse, located at 330 Jay Street in Brooklyn, for violating an order of protection. At the courthouse, § 87(2)(b) requested to be taken to the hospital but was transported to the 71st Precinct Stationhouse (**Allegations A and B: Abuse of Authority, Exonerated**). After being lodged in the holding cell area, § 87(2)(b) allegedly requested medical attention from PO Lopez but he failed to obtain it for her (**Allegation C: Abuse of Authority, Substantiated**). § 87(2)(g)

BWC footage of this incident was obtained from PO Lopez [linked to BR 01, summarized in BR 02] and PO Hansen [linked to BR 03, summarized in BR 04]. It captures § 87(2)(b) requesting medical attention at the scene of her arrest.

Findings and Recommendations

Allegation A – Abuse of Authority: At 330 Jay Street in Brooklyn, Police Officer Luis Lopez did not obtain medical treatment for § 87(2)(b)

Allegation B – Abuse of Authority: At 330 Jay Street in Brooklyn, Police Officer David Hansen did not obtain medical treatment for § 87(2)(b)

Allegation C – Abuse of Authority: At the 71st Precinct Stationhouse in Brooklyn, Police Officer Luis Lopez did not obtain medical treatment for § 87(2)(b)

It is undisputed that § 87(2)(b) requested medical attention at the scene of her arrest and that PO Lopez and PO Hansen did not obtain medical attention for her. § 87(2)(g)

§ 87(2)(b) was interviewed at the CCRB on January 25, 2018 [BR 05]. She did not mention requesting medical attention at the scene of her arrest. She stated that at the stationhouse, she was handcuffed to a bench in the holding cell area where she awaited transport for approximately nine hours. As per the Prisoner Holding Pen Roster [BR 06], § 87(2)(b) was lodged in the holding cells at 1:00 p.m. At approximately 3:00 p.m., § 87(2)(b)'s head began to hurt and she subsequently asked PO Lopez to see a doctor. PO Lopez did not respond and came back later with a sandwich and a drink. § 87(2)(b) believed PO Lopez commented that it may help with her headache. During her time in the stationhouse, she talked to herself about needing to see a doctor, said her head was hurting very badly, and requested medical attention from every officer that walked by. § 87(2)(b) cried intermittently and fell asleep several times. At Central Booking, an EMT took § 87(2)(b)'s blood pressure and she was transported to § 87(4-b), § 87(2)(g) from Central Booking.

The Prisoner Holding Pen Roster shows that § 87(2)(b) and § 87(2)(b) were lodged in the holding cells with § 87(2)(b). § 87(2)(b) was lodged at 12:30 p.m. while § 87(2)(b) was lodged at 1:15 p.m. As noted above, § 87(2)(b) was lodged at 1:00 p.m. § 87(2)(b) and § 87(2)(b) were all transported to Central Booking at 9:45 p.m.

On March 5, 2018, a call was placed to § 87(2)(b) [BR 07]. He stated that § 87(2)(b) was crying, praying, and seemed upset. § 87(2)(b) commented that she had never

been handcuffed before, that her sister was threatening her, and requested to use the bathroom.

§ 87(2)(b) also said that her back hurt from sitting on the bench for six hours; however, § 87(2)(b) did not recall if she made any requests for medical attention. § 87(2)(b) said § 87(2)(b) did not look well and believed she could have gone to the doctor to receive a nebulizer because she was hyperventilating, crying, was out of breath, needed water, and had "a lot of things going on." A few male officers went "out of their way" for § 87(2)(b) by bringing her something to eat and drink. § 87(2)(b) added that he did not recall many details regarding § 87(2)(b) because he was focused on himself and tried to mind his own business.

On March 23, 2018, a call was placed to § 87(2)(b) [BR 08]. He stated that an officer, whom he described as a white male with black hair, an average build, 5'8" to 5'9" tall, in his 30s, and dressed in uniform, brought § 87(2)(b) into the holding cell area and handcuffed her to the bench. BWC footage from the holding cells shows that PO Lopez and PO Hansen were both present as § 87(2)(b) was handcuffed to the bench. As per the MOS photo terminal, PO Lopez is a Hispanic male with a medium tan complexion, is § 87(2)(b), and has black hair and an average build. PO Hansen is a white male, is § 87(2)(b), and has blonde hair and an average build. § 87(2)(g)

While in the holding cell area, § 87(2)(b) said that she needed to go to the hospital. PO Lopez was present for one of § 87(2)(b)'s requests and informed her that he would call for EMS in a few minutes but § 87(2)(b) did not receive medical attention. § 87(2)(b) repeatedly said she needed to go to the hospital but no officers were nearby and the door to the holding cell area was closed. § 87(2)(b) was scheduled to provide an in-person statement at the CCRB on March 30, 2018, but he did not appear. Two letters were mailed to § 87(2)(b) and four additional calls were placed to reschedule his interview [BRs 09, 10, 11, 12, 13, and 14]. However, § 87(2)(b) could not be reached to reschedule his interview. On May 30, 2018, a search of LexisNexis was performed for additional phone numbers for § 87(2)(b) but none were identified. As a result, § 87(2)(b) did not provide a sworn statement regarding this incident.

PO Lopez was interviewed on April 20, 2018 [BR 15]. He stated that while attempting to place § 87(2)(b) under arrest, she immediately became upset, started to cry, breathe heavily, and immediately requested to be taken to the hospital three to four times. She complained of chest pains and difficulty breathing. PO Lopez did not observe any visible signs of injury or other symptoms of physical distress on § 87(2)(b). PO Lopez stated that they would have taken § 87(2)(b) to the hospital if she "legitimately" needed to go. He did not believe § 87(2)(b) was in immediate distress or that this was an emergency; he believed that the arrest led to her becoming very anxious, and that she just needed to be calmed down. PO Lopez did not consult with any other officer about taking her to the hospital from the scene of arrest because once § 87(2)(b) was taken back to the stationhouse, if she continued to request medical attention or state that she could not breathe, an ambulance would have been called at that time. PO Lopez also explained to § 87(2)(b) that if she needed an ambulance once she was taken to the stationhouse, one would be called for her. § 87(2)(b) did not appear to listen to PO Lopez as she was still very upset at this point. PO Lopez stated that officers have discretion to decide if an ambulance needs to be immediately called when a person requests medical attention. § 87(2)(b) was given water by a court officer prior to being transported to the 71st Precinct Stationhouse. § 87(2)(b) continued to cry, but appeared to settle down after taking a few moments to relax and drink the water. She also stopped requesting to be taken to a hospital once

she began to calm down. PO Lopez did not recall § 87(2)(b) complaining of needing medical attention or of being in any pain during transport and he did not believe that she needed medical attention.

Once they arrived at the 71st Precinct Stationhouse front desk, PO Lopez asked § 87(2)(b) if she was “okay” and if she needed medical attention and she said no. § 87(2)(b) was then handcuffed to a bar outside of the holding cells. Once § 87(2)(b) was handcuffed to the bar, she did not make any additional requests for medical attention. PO Lopez returned to visit § 87(2)(b) approximately four or five times in order to finish her arrest processing. § 87(2)(b) did not request medical attention at any point while PO Lopez went back and saw her. She continued to complain about her nieces, calling them “wicked,” and periodically began to cry. PO Lopez left the stationhouse at approximately 4:15 p.m.

PO Hansen was interviewed on April 19, 2018 [BR 16]. He stated that § 87(2)(b) was very upset after leaving the courthouse, saying that her accuser was not telling the truth. PO Hansen did not recall any other statements that § 87(2)(b) made, but recalled that she was possibly crying and speaking very loudly. PO Hansen did not believe that § 87(2)(b) needed medical attention and denied that she requested medical attention at the scene of her arrest. She did not complain of any pain to her head or chest and PO Hansen did not observe any injuries on her person. Once § 87(2)(b) was placed in the patrol car, she began to calm down. PO Hansen did not recall when he last saw § 87(2)(b) once she was brought into the stationhouse. PO Hansen did not hear § 87(2)(b) request medical attention at any point or complain of any pain or injuries inside the stationhouse.

As noted above, BWC footage from PO Lopez and PO Hansen was obtained. PO Lopez’s BWC footage is 48 minutes and 13 seconds long and captures § 87(2)(b)’s arrest, transport to the 71st Precinct Stationhouse, and her lodging into the holding cell area [linked to BR 01, summarized in BR 02]. At 42 minutes and 10 seconds, PO Lopez escorts § 87(2)(b) into the holding cell area. The footage concludes immediately after § 87(2)(b) is handcuffed to the bar above the bench. PO Hansen’s footage is six minutes and 40 seconds long and captures a portion of § 87(2)(b)’s arrest at the courthouse [linked to BR 03, summarized in BR 04]. PO Hansen turned off his BWC camera when he left the courthouse to pick up the officers’ patrol vehicle to transport § 87(2)(b) to the stationhouse. Although § 87(2)(b) did not allege that she requested medical attention at the scene of her arrest, BWC footage from PO Lopez and PO Hansen shows that she requested that the officers take her to the hospital, complained that her chest was hurting her, and said that she could not breathe [relevant footage embedded below]. During transport, § 87(2)(b) commented that her head was hurting and that she believed her blood pressure was rising [relevant footage embedded below]. § 87(2)(b) is then brought before the front desk, searched, and handcuffed to a bar in the holding cell area. The footage does not capture § 87(2)(b) requesting medical attention once lodged in the holding cell area.



2018-06-08_16-15-29.mp4



2018-06-08_16-35-00.mp4



201800674_20180418_1310_DM.mp4



201800674_20180418_1258_DM.mp4

After reviewing the BWC footage from this incident, PO Hansen stated that he had not remembered § 87(2)(b) requesting to be brought to the hospital at the scene of her arrest and did not know why she was not brought to the hospital. He did not recall having a conversation with PO Lopez or any other officer about whether § 87(2)(b) should be transported directly to the hospital from the courthouse instead of to the 71st Precinct Stationhouse. When asked if officers have discretion to determine whether a person should be brought to a hospital if a civilian requests to be taken to a hospital, PO Hansen replied, “No.”

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

NYPD Patrol Guide Procedure 210-04 states that officers are to request an ambulance and remove a prisoner to the hospital directly from the place of arrest, if necessary [BR 17].

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **Exonerated**.

§ 87(2)(g)

Patrol Guide Procedure 210-04 states that officers are to obtain medical treatment for prisoners when necessary. § 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Substantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [BR 20].
- PO Lopez has been a member of the service for 15 years and has been a subject in four other CCRB complaints involving nine allegations, of which one was substantiated.
 - 201605988 involved a substantiated allegation of a premises entered and/or searched. The Board recommended Command Level Instructions and the NYPD imposed Formalized Training.
- PO Hansen has been a member of the service for five years and this is the first complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 25, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident [BR 21].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: ____9____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

